Newanforbi v. California Highway Patrol, et al.

Alameda County Superior Court Case No. 26CV191136

LITIGATION RESEARCH MEMORANDUM

Re: Strategy for Motion for Peremptory Writ of Mandate (Hearing Jan. 8, 2027) **Subject:** Strongest path to certification or legally controlled remand under Cal. Penal Code § 679.10 and Code Civ. Proc. § 1085

1. Recommended Remedial Theory (Executive Summary)

Do not lead with a request for direct certification. The statutory text of § 679.10(g)(1) is mandatory ("shall certify") once the conditions are met, but California traditional mandamus doctrine sharply limits a court's power to compel a discretionary agency to reach a particular result. The court can correct an "arbitrary, capricious, or entirely lacking in evidentiary support" decision, but it ordinarily cannot substitute its judgment for the agency's on disputed facts.

The strongest legally supportable path is a two-tier request:

1. **Primary (realistic): Vacatur and legally controlled remand.** Ask the court to set aside the April 20 denial because it rests on a material factual error—CHP's certified Form 202 states Petitioner "chose not to perform" the walk-and-turn because it was "difficult," while the contemporaneous recording (produced by CHP itself in discovery) shows Petitioner expressed willingness and Officer Melano declined to administer it because the freeway shoulder was uneven. This discrepancy, combined with CHP's binding judicial admissions in its verified Answer (vehicle stationary, no verbal disclosure of odor or slurred speech, cup identified as urine, Petitioner correctly identified location and read signs), establishes that the denial's factual premise is not merely debatable but demonstrably inaccurate on the agency's own record. That is sufficient for an abuse-of-discretion finding and remand.
2. **Secondary (aggressive but candid): Direct certification only if the court finds the statutory conditions conclusively established.** Frame this as available only if the court determines, on the authenticated recording and CHP's admissions, that no reasonable certifying official could find the absence of qualifying victimhood under a correct view of the facts. Acknowledge the doctrinal barrier but preserve the argument.

This structure protects against the most likely adverse ruling (the court declining to order certification because factfinding is required) while still positioning the case for meaningful relief.

2. Statutory and Doctrinal Framework

A. § 679.10 Creates a Conditional Mandatory Duty

Penal Code § 679.10(g)(1) provides that a certifying official "shall certify victim helpfulness" when (1) the person was a victim of qualifying criminal activity and (2) has been, is being, or is likely to be helpful. "False imprisonment" is expressly enumerated as qualifying criminal activity in § 679.10(c)(19).

Crucially, § 679.10(k)(1) states that "a prosecution or conviction [is] not required" for the victim to request and obtain certification. This eliminates the most common reflex denial ground. Subdivision (h) creates a rebuttable presumption of helpfulness where the victim has not refused or failed to provide reasonably requested assistance. Subdivision (k)(3)(H) prohibits denial based on "the victim's cooperation or refusal to cooperate in a separate case"—directly relevant to CHP's likely reliance on Petitioner's PAS refusal in the DUI investigation.

B. The Traditional Mandamus Barrier to Direct Certification

Code Civ. Proc. § 1085 authorizes a writ "to compel the performance of an act which the law specially enjoins". But the case law is consistent: mandamus will not lie "to control the manner in which an administrative officer is to exercise discretion lawfully entrusted to him" or "to force the exercise of discretion in a particular manner or to reach a particular result". A court may correct an abuse of discretion—defined as action that is "arbitrary, capricious, entirely lacking in evidentiary support, unlawful, or procedurally unfair"—but it "may not substitute its judgment for that of the agency".

This means the court is far more likely to vacate and remand than to order CHP to sign the form. The remand, however, can be highly directive: the court may order reconsideration under the correct legal standard and specify the factual error that must be corrected.

C. False Imprisonment: Elements and Application

Penal Code § 236 defines false imprisonment as "the unlawful violation of the personal liberty of another". The elements are:

1. Intentional restraint, detention, or confinement;
2. Without lawful authority or consent;
3. Compelling the person to stay or go somewhere against their will.

The restraint here is undisputed as a physical matter: commands, handcuffing, placement in the patrol vehicle, transportation to the CHP office and Santa Rita Jail, and detention for four days.

CHP admits these acts occurred. The disputed element is lawfulness. Petitioner's theory is not that every DUI arrest is false imprisonment; it is that this particular restraint lacked lawful authority because the stated probable-cause rationale was materially inaccurate, and the certifying official relied on that inaccurate account in denying that a qualifying restraint occurred.

The strongest factual pillars for this theory are:

- CHP's verified Answer admits that Petitioner was parked, not driving when observed; that the officers did not tell Petitioner they smelled alcohol or that his speech was impaired; that the cup was identified as urine; and that Petitioner correctly identified Livermore and read highway signs aloud.
- The walk-and-turn discrepancy directly contradicts the Form 202's stated basis for arrest ("poor performance on the FST's") and supports the inference that the officers manufactured or exaggerated the impairment rationale.
- The blood result of 0.073% is below the 0.08% statutory threshold, and under Vehicle Code § 23152(b), a result between 0.05% and 0.10% creates no presumption of impairment. While § 23152(a) can rest on observational evidence, the absence of a numerical presumption weakens the claim that the arrest was supported by objective, quantifiable impairment.

3. The Walk-and-Turn Discrepancy: Making It Remedially Material

The discrepancy is powerful only if framed as evidence that CHP's certification denial rests on a materially false factual premise, not as a free-standing claim that the arrest was unconstitutional.

What the record shows (as produced by CHP):

- Form 202 (AGO 000031–000032): "Walk and Turn: Newanforbi chose not to perform this test and related it was difficult."
- Transcript (Pet., Ex. 5, 01:10:14–01:10:30): Petitioner: "I mean I think we can do that." Melano: "It's kind of sketch here bro. … it's on the side of the freeway and it's like uneven ground. I wouldn't do that one." Meza-Gonzalez: "Alright then."

Why it is material to the § 679.10 decision: Captain Serrato's denial necessarily rested on the agency's account of the encounter. If the account of why the walk-and-turn was not performed is demonstrably wrong—and wrong in a direction that inflates the appearance of non-cooperation or impairment—then the factual basis for concluding that the restraint was a lawful DUI arrest (rather than an unlawful restraint) is compromised. The certification decision is not insulated from that error simply because Serrato may not have personally watched the video; the agency's own records were the evidentiary input.

What the court can find without an evidentiary hearing: The recording was produced by CHP in discovery (Bates AGO 000022–000024). Under Evidence Code § 1553, a printed representation of images stored on a video medium is presumed accurate. CHP has not disputed the recording's authenticity in its discovery responses. The court can compare the Form 202 text to the produced recording and find the discrepancy as a matter of documentary record.

What this supports: It supports vacatur and remand comfortably. It does not, by itself, compel direct certification, because the court would still need to find that the corrected record establishes qualifying victimhood as a matter of law—a step the agency has not yet taken on a correct factual premise.

4. Element-by-Element False Imprisonment Analysis for the Motion

Element	Record support	CHP's likely counter	Response
Intentional restraint	Officers commanded Petitioner out, handcuffed him, placed him in patrol car, transported him, booked him	"A lawful DUI arrest is not false imprisonment"	Correct—but the lawfulness of the arrest is the disputed issue; intentional restraint is admitted
Against will	Petitioner did not consent; he was handcuffed and transported	"He complied"	Compliance under color of authority is not consent; false imprisonment does not require violent resistance
Without lawful authority	Walk-and-turn discrepancy; no verbal odor/slurred speech; urine cup; stationary vehicle; 0.073% BAC	"Officers had probable cause based on odor, FSTs, and PAS refusal"	Probable cause is evaluated on accurate facts; Form 202 misstated the walk-and-turn; PAS refusal cannot be used as a substitute for objective impairment

The weakest part of the false-imprisonment theory is the "lawful authority" element. The officers did have some basis to investigate (vehicle on shoulder, groggy driver, empty Mike's Hard Lemonade can). The theory must therefore be narrow: the restraint became unlawful when the stated probable-cause rationale was materially false, and the certification denial rests on that false rationale. This is not a demand that the court declare the entire DUI investigation unconstitutional; it is a demand that the § 679.10 decision not be insulated from the agency's own factual error.

5. Helpfulness: Separating It from the DUI Investigation

CHP's Answer (¶ 57) denies that any "investigating entity" requested information. But § 679.10(h) places the burden on the agency to show a reasonable request that the victim refused. Petitioner provided a detailed transcript, incident records, and a timeline with his certification request; he filed complaints with CHP and POST; and he remains willing to assist with investigation of the alleged unlawful restraint [see Newanforbi Decl. ¶¶ 7–8].

The PAS refusal is a red herring. § 679.10(k)(3)(H) prohibits denial based on "cooperation or refusal to cooperate in a separate case". The DUI investigation of Petitioner is a separate matter from the investigation of the officers' alleged unlawful restraint. The motion should explicitly invoke (k)(3)(H) to preempt CHP's reliance on the PAS refusal.

6. Anticipated CHP Opposition and Responses

CHP argument	Best response	Supports direct certification?
"Certification is discretionary"	§ 679.10(g)(1) says "shall certify" once conditions met; discretion exists only in determining whether conditions are met, not in whether to sign	Yes, in theory; practically supports remand
"The court cannot order certification"	Largely correct under § 1085; pivot to remand with binding legal instructions	No; supports remand
"No qualifying criminal activity—just a DUI investigation"	False imprisonment is enumerated; the question is whether the restraint was lawful, not whether a DUI investigation occurred	Supports remand
"Officers had probable cause"	Probable cause must rest on accurate facts; Form 202 materially misstated the walk-and-turn; 0.073% creates no statutory presumption	Supports remand
"Walk-and-turn discrepancy is immaterial"	It goes to the stated basis for arrest and the certification denial's factual premise, not a collateral credibility matter	Supports remand
"PAS refusal supports arrest"	§ 679.10(k)(3)(H) bars using separate-case cooperation against the victim; PAS refusal is not objective impairment evidence	Supports remand
"Recording not authenticated"	Produced by CHP in discovery; Evid. Code § 1553 presumption; CHP has not disputed authenticity	Neutral
"Helpfulness not established"	§ 679.10(h) presumption; no evidence of a refused reasonable request concerning the restraint investigation	Supports remand

7. Arguments to Remove or Narrow

Remove or de-emphasize:

- Fourth Amendment / vehicle search chronology (the door-opening sequence, the parole search issue). This is a suppression argument dressed as a mandate argument; it distracts from § 679.10 and invites the court to frame the case as a DUI challenge.
- The PAS refusal as a central pillar. It is statutorily irrelevant under § 679.10(k)(3)(H) and creates a sympathy problem.
- General assertions that the entire arrest was unconstitutional. The court need not resolve that; the narrower material-factual-error theory is stronger.

Keep and sharpen:

- The walk-and-turn discrepancy, tied directly to the Form 202's arrest rationale and CHP's certification denial.
- CHP's judicial admissions in the verified Answer.
- The 0.073% BAC and the absence of a statutory presumption under Veh. Code § 23152(b).
- § 679.10(k)(1) and (k)(3)(H) as statutory limits on CHP's discretion.

8. Proposed Remedial Language (for the Proposed Judgment and Writ)

Alternative A (Preferred): Vacatur and Controlled Remand

FINDINGS

1. Penal Code § 679.10(c)(19) enumerates false imprisonment as qualifying criminal activity. Under § 679.10(g)(1), certification is required when the victim was a victim of qualifying criminal activity and has been helpful, is being helpful, or is likely to be helpful.
2. CHP's April 20, 2026 denial rests on the agency's account of the November 1, 2024 encounter. CHP's own Form 202 states that Petitioner "chose not to perform" the walk-and-turn and "related it was difficult." The recording produced by CHP in discovery (AGO 000022–000024) reflects Petitioner expressing willingness to attempt the test and Officer Melano stating that the freeway shoulder was uneven and that he "wouldn't do that one." This is a material factual discrepancy bearing on the stated basis for the restraint.
3. CHP's verified Answer admits that the vehicle was stationary, that the officers did not verbally disclose an odor of alcohol or tell Petitioner his speech was slurred, that the cup was identified as urine, and that Petitioner correctly identified his location and read highway signs. These admissions further undermine the factual premise of the denial.
4. The April 20 denial does not identify a lack of helpfulness as a ground for refusal. § 679.10(k)(1) provides that prosecution or conviction is not required.

JUDGMENT

The April 20, 2026 denial is VACATED. The matter is REMANDED to CHP for reconsideration under the following binding directions:

(a) CHP shall apply § 679.10(c)(19) and (d) to determine whether the November 1, 2024 restraint constituted false imprisonment or a substantially similar qualifying crime, without

requiring a prosecution or conviction.

(b) CHP shall correct the material factual error identified above and shall not rely on the Form 202's walk-and-turn statement as a basis for finding a lack of qualifying activity.

(c) CHP shall evaluate helpfulness separately from qualifying victimhood and shall apply the presumption of helpfulness under § 679.10(h).

(d) CHP shall not deny certification based on Petitioner's refusal of the voluntary PAS in the separate DUI investigation, as prohibited by § 679.10(k)(3)(H).

(e) If CHP again denies certification, it shall provide a written explanation complying with § 679.10(i)(2), identifying the specific factual and legal basis for denial.

(f) CHP shall file a verified return within 45 days of service of the writ.

Alternative B (Aggressive): Direct Certification (Only if Court Finds Conditions Conclusively Established)

FINDINGS

The Court finds, on the authenticated recording and CHP's binding judicial admissions, that no reasonable certifying official applying the correct legal standard could find that the November 1, 2024 restraint was lawful as a matter of § 679.10(c)(19). The walk-and-turn discrepancy and the admitted absence of verbal impairment observations establish that the stated probable-cause rationale was materially inaccurate. The only lawful outcome is certification.

WRIT

CHP is COMMANDED to complete and issue the Form I-918, Supplement B certification within 30 days.

9. Evidence and Authentication Plan

Item	Current status	Needed step
Dashcam recording	Produced by CHP in discovery; CHP has not disputed authenticity	Request judicial notice or stipulation; Evid. Code § 1553 presumption

Item	Current status	Needed step
Form 202	Produced by CHP; Bates AGO 000031–000032	Already authenticated as agency record
Verified Answer	Filed by CHP	Use as judicial admission; no further authentication needed
Blood toxicology (0.073%)	Produced by CHP; Bates AGO 000033–000034	Already authenticated
Petitioner's transcript	Prepared by Petitioner	Do not rely on it as primary evidence; use the native recording
Helpfulness evidence	Petitioner's declaration; certification request exhibits	Sufficient for § 679.10(h) burden-shifting; CHP has no evidence of a refused reasonable request

10. Final Prioritized Revision Checklist

1. Reframe the motion's lead argument around § 679.10's mandatory text and the material-factual-error theory, not around the Fourth Amendment or the vehicle search.
2. Move the walk-and-turn discrepancy to the center of the materiality analysis, tied explicitly to Form 202's arrest rationale.
3. Lead with CHP's judicial admissions from the verified Answer; quote them.
4. Remove or heavily footnote the door-opening chronology and the parole-search argument.
5. Delete the PAS refusal as an affirmative argument; mention it only to invoke § 679.10(k)(3)(H).
6. Add the 0.073% BAC and the absence of a § 23152(b) presumption to the probable-cause discussion.
7. Clarify that direct certification is sought only if the court finds the conditions conclusively established, and expressly acknowledge the § 1085 limitation.
8. Revise the proposed judgment to lead with vacatur and controlled remand, with direct certification as a clearly labeled alternative.
9. Add a request that the court retain jurisdiction over the writ return and set a compliance deadline.
10. Remove any request for findings broader than necessary (e.g., do not ask the court to declare the arrest unconstitutional; ask only that the certification denial not rest on a materially false factual premise).

Bottom line: The statutory duty is strong, but the remedial doctrine is cautious. The motion is most likely to succeed—and to produce meaningful relief—if it asks the court to vacate the denial because it rests on a demonstrably false factual premise, and to remand with instructions that bind CHP to the correct legal standard, while preserving direct certification only as a fallback for a court willing to find that the record leaves no lawful alternative.